

**STATE OF NEW MEXICO
COUNTY OF SANTA FE
FIRST JUDICIAL DISTRICT COURT**

**DERICK WALSH and JOLEEN YOUNGERS
as Personal Representative of the Wrongful
Death Estates of JESSICA WALSH,
MICHAEL WALSH, and ANGELA MARIE
WALSH, Deceased,**

No. D-101-CV-2024-01789

Plaintiffs,

v.

**GOODYEAR TIRE & RUBBER CO.,
ROADJET TRANSPORTATION, INC.,
POLESTAR TRANSPORT, INC., and
THE NEW MEXICO DEPARTMENT OF
TRANSPORTATION,**

Defendants.

**PLAINTIFFS' FIRST AMENDED COMPLAINT FOR WRONGFUL DEATH,
PERSONAL INJURY, LOSS OF CONSORTIUM, AND PUNITIVE DAMAGES**

COME NOW Plaintiffs, Derick Walsh and Joleen Youngers, as Personal Representative of the Wrongful Death Estates of Jessica Walsh, Michael Walsh, and Angela Marie Walsh, Deceased, and state the following as Plaintiffs' First Amended* Complaint for Wrongful Death, Personal Injury, Loss of Consortium, and Punitive Damages.

I. PARTIES, JURISDICTION, AND VENUE

1. Plaintiff Derick Walsh is a natural person and is the surviving son of Michael and Angela Walsh, and he is the surviving brother of Jessica Walsh. Derick Walsh is a citizen and resident of Indiana.

2. Plaintiff Joleen Youngers, as Personal Representative of the Wrongful Death Estates of Jessica Walsh, Michael Walsh, and Angela Marie Walsh, Deceased, is a resident of

* An incorrect version of this First Amended Complaint was inadvertently filed on July 31, 2024 at 3:38 p.m. This First Amended Complaint is being filed to replace the incorrect version for all purposes.

Santa Fe County, New Mexico. Plaintiff Joleen Youngers was appointed by the Court pursuant to N.M. Stat. Ann. § 41-2-3, on December 13, 2023, as Personal Representative of the Wrongful Death Estates of Jessica Walsh, Michael Walsh, and Angela Marie Walsh, Deceased.

3. Defendant Goodyear Tire & Rubber Co. (“Goodyear”) is a corporation organized under the laws of the State of Ohio. Goodyear has transacted business in the State of New Mexico at all times relevant hereto. Goodyear may be served with process through its registered agent, Corporation Service Company at 110 E. Broadway St., Hobbs, New Mexico 88240.

4. Defendant Roadjet Transportation, Inc. (“Roadjet”) is a corporation organized under the laws of the State of California. Roadjet has transacted business in the State of New Mexico at all times relevant hereto but has failed to designate an agent for service of process in the State of New Mexico. Pursuant to New Mexico Statute Annotated, Section 38-1-6, service of process may be obtained by serving the New Mexico Secretary of State with two copies of the process in this cause. The New Mexico Secretary of State will then complete service by serving Roadjet’s registered agent for service, Suarabh Pillai, at the designated address of 24811 Rivard Road, Moreno Valley, California 92551. Roadjet was the owner-operator of the 2002 Volvo truck and attached trailer that, on July 18, 2023, crossed the earthen median and struck the 2020 Nissan Altima that was driven by Michael Walsh, and occupied with passengers Angela Walsh and Jessica Walsh.

5. Defendant Polestar Transport, Inc. (“Polestar”) is a corporation organized under the laws of the State of California. Polestar has transacted business in the State of New Mexico at all times relevant hereto but has failed to designate an agent for service of process in the State of New Mexico. Pursuant to New Mexico Statute Annotated, Section 38-1-6, service of process may be obtained by serving the New Mexico Secretary of State with two copies of the process in this

cause. The New Mexico Secretary of State will then complete service by serving Polestar's registered agent for service, Suarabh Pillai, at the designated address of 24811 Rivard Road, Moreno Valley, California 92551.

6. At all times relevant hereto, Defendants Roadjet and Polestar were in a joint venture/enterprise. Each Defendant shared a community of interest and had an equal right to share in the control, management, and operation of their interstate trucking joint venture/enterprise.

7. Defendant New Mexico Department of Transportation ("NMDOT") is an official governmental entity of the State of New Mexico and, for purposes of this action, is a citizen of New Mexico established under the laws of New Mexico, having its principal place of business located in Santa Fe, New Mexico. Pursuant to NMRA 1-004(H), service may be made on Defendant NMDOT by delivering a copy to the head of the NMDOT and the New Mexico Attorney General.

8. Sovereign immunity is waived for Plaintiffs' claims against Defendant NMDOT under N.M. Stat. Ann. § 41-4-11 (1991), under which Defendant NMDOT is not immune from "liability for damages resulting from bodily injury, wrongful death or property damage caused by the negligence of public employees while acting within the scope of their duties during the construction, and in subsequent maintenance of any bridge, culvert, highway, roadway, street, alley, sidewalk or parking area." The term "maintenance" includes upkeep and repair, as well as a reasonable response to a known dangerous condition on a roadway. *Martinez v. NMDOT*, 2013-NMSC-005, ¶ 21, 296 P.3d 468, 472–73.

9. Timely written notice of Plaintiffs' claims was given to NMDOT pursuant to NMSA 1978, Section 41-1-16 (1977).

10. All corporate, LLC, and governmental agency defendants acted by and through their agents, partners, officers, and employees and are responsible for their acts or omissions through the doctrines of *respondeat superior* or agency.

11. Jurisdiction over the parties and the subject matter herein is proper with this Court pursuant to Article IV of the New Mexico Constitution and the New Mexico long-arm statute, N.M. Stat. Ann. § 38-1-16.

12. This Court has specific personal jurisdiction over Goodyear due to its contacts with and conduct directed toward New Mexico and through the stream of commerce, including, upon information and belief, its marketing and distribution of tires in New Mexico, its provision of service on tires in New Mexico, its warranties covering tires in New Mexico, and its income derived from sales, service, and repair work performed by Goodyear or tire dealerships selling Goodyear tires in New Mexico. Moreover, this Court has specific personal jurisdiction over Goodyear because the episode-in-suit¹ is the underlying fatal crash that occurred in New Mexico.

13. This Court has specific personal jurisdiction over Defendants Roadjet and Polestar because Roadjet and Polestar submitted themselves to the jurisdiction of the courts of this state because of their operation of a motor vehicle upon the highways of this state which amount to the commission of tortious acts within this state by Roadjet and Polestar and by Roadjet's and Polestar's agents. See N.M. Stat. Ann. § 38-1-16 (West).

¹ "Episode-in-suit" is a jurisdictional term of art used by the Supreme Court, and in tire-failure-induced crashes, the episode-in-suit occurs where the crash occurred. See *Goodyear Dunlop Tires Ops. v. Brown*, 564 U.S. 915, 919-920, 131 S.Ct. 2846, 2851 (2011) ("the episode-in-suit, the bus accident, occurred in France").

14. Venue is proper in this Court pursuant to N.M. Stat. Ann. § 38-3-1(A) because Plaintiff Joleen Youngers is a resident of Santa Fe County, State of New Mexico. Venue is also proper in this Court pursuant to N.M. Stat. Ann. § 41-4-18.

15. Joinder of Plaintiffs' claims against Defendants in this action is proper under Rule 1-020, because Plaintiffs' claims: (1) arise out of the same transaction, occurrence, or series of transactions or occurrences; and (2) questions of law and fact common to all Defendants will arise in this action.

II. FACTUAL BACKGROUND

16. On July 18, 2023, Michael and Angela Walsh were driving their daughter Jessica across I-40 en route to Northern Arizona University where she was a Ph.D. student in planetary sciences. The Walshes were driving in their 2010 Nissan Altima westbound from Indiana to Arizona; Michael was in the driver's seat, Angela was in the front passenger seat, and Jessica was in the rear with the family dog, Galaxy.

17. Jessica Walsh was an exceptional person and student. Jessica was on track to receive her Ph.D. in planetary science, which would open a wide range of opportunities for a successful career. She had experience working on the Lunar Reconnaissance Orbiter Camera Program through NASA at Arizona State University, and other advanced aerospace and planetary science projects. Jessica enjoyed outdoor activities and spending time with her beloved dog, Galaxy.

18. Michael Walsh was the husband of Angela Walsh for 33 years, and father of Derick and Jessica. He was an electrical engineer who worked as an engineer and later a director at several energy companies. Michael had recently retired, and he was enjoying his retirement with Angela. Mike was a music lover, who played drums, bass, and guitar.

19. Angela Walsh was wife to Michael for 33 years, and mother to Derick and Jessica. She worked as a financial account manager and transportation account manager. She was a tireless volunteer, giving her time to St. Vincent DePaul and Holy Spirit, both in Indiana. She was also a music lover and had a beautiful singing voice.

20. On July 18, 2023, a 2020 Volvo tractor-trailer being driven by Roadjet and Polestar's employee and/or agent, Jama Mohammed Ismail ("Ismail"), was traveling in the eastbound left lane on I-40 in Cibola County, New Mexico.

21. At all times relevant hereto, Ismail was working in the course and scope of his employment, agency, or apparent agency with Defendants Roadjet and Polestar. Defendants Roadjet and Polestar are liable for the actions and inactions of Ismail under the doctrine of *respondeat superior*.

22. The steer tire (hereinafter referred to as the "Failed Tire") of the tractor-trailer, a Goodyear Endurance LHS 295/75/R22.5 bearing DOT MC37 C8BW 0922, experienced a catastrophic failure causing the tractor-trailer to cross the center median and collide head-on with the 2010 Nissan Altima that was being driven by Michael Walsh, who had Angela Walsh, his wife, and Jessica Walsh, his daughter, as passengers in the vehicle. Jessica Walsh's dog Galaxy was also in the car.

23. The 2020 Volvo tractor-trailer decimated the 2010 Nissan Altima and all three passengers died, along with the dog Galaxy.

24. The Roadjet and/or Polestar tractor-trailer ultimately came to rest at the bottom of a hill on the north side of I-40.

25. At this stretch of I-40, the roadway consists of two lanes for eastbound traffic and two lanes for westbound traffic. The speed limit in this area is 75 miles per hour. The median of I-

40 through which the Roadjet and/or Polestar tractor-trailer traveled did not contain a median barrier to prevent cross-over accidents.

26. The deaths and injuries identified above are a direct and proximate result of the negligence of Defendants Goodyear, Roadjet, Polestar, and the NMDOT.

Count 1: Strict Products Liability (Goodyear)

27. Plaintiffs repeat and re-allege all paragraphs in this Complaint as if fully set forth herein.

28. The Failed Tire, a Goodyear Endurance LHS 295/75/R22.5 bearing DOT MC37 C8BW 0922, was manufactured, distributed, marketed, and placed into the stream of commerce by Defendant Goodyear. At the time the Failed Tire was placed into the stream of commerce by Defendant Goodyear it was unfit for its intended uses and purposes due to manufacturing defects. These defects include, but are not limited to, the following:

- a. The tire lacks adequate adhesion between components;
- b. The tire's inner liner was flawed for its intended purpose; and/or
- c. The tire's belts were misaligned.

29. The Failed Tire was in the same or substantially similar condition as it was when it was manufactured, distributed, marketed, and placed into the stream of commerce by Goodyear.

30. The defective condition of the Failed Tire was a direct and producing cause of the crash in question, the fatal injuries suffered by Michael and Angela Walsh and Jessica Walsh, and the resulting damages to Plaintiffs.

Count 2: Negligence Including Gross Negligence (Goodyear)

31. Plaintiffs repeat and re-allege all paragraphs in this Complaint as if fully set forth herein.

32. Defendant Goodyear had the duty to use ordinary care in designing, making, testing, and marketing the Failed Tire.

33. In addition, Defendant Goodyear's duty to use ordinary care to avoid foreseeable risk of injury continued after the Failed Tire left their possession, if they knew, or in the exercise of ordinary care should have known, of a foreseeable risk of injury caused by a condition of the Failed Tire or the manner in which it could be used.

34. In addition, Defendant Goodyear had a duty to use ordinary care to warn of a risk of injury about which they knew or should have known.

35. In addition, Defendant Goodyear had a duty to use ordinary care to provide directions or instructions for use of the Failed Tire to avoid a risk of injury caused by a foreseeable manner of use.

36. In addition, Defendant Goodyear had a duty to use ordinary care to inspect the Failed Tire for conditions which could expose users to risk of injury. Alternatively, Defendant Goodyear had a duty to inspect the Failed Tire before selling it for conditions which could expose users to risk of injury when they had knowledge which would lead a reasonably prudent person to undertake an inspection.

37. The duty of care increases with the severity of danger, thus Defendant Goodyear's duty was especially high given the likelihood of death or serious injury from a tire failure at highway speeds.

38. Beyond its duty to exercise ordinary care, Defendant Goodyear had a duty to refrain from acting with reckless or malicious or wanton disregard of risks and dangers of which it was aware.

39. Defendant Goodyear breached its duties of care, and, therefore, was negligent and grossly negligent in at least the following particulars:

- a. Production of a tire with inadequate and incomplete component adhesion;
- b. Production of a tire with inadequate and incorrect inner liner;
- c. Design and production of a tire without necessary safety features that were known and/or available to Defendant Goodyear at the time;
- d. Manufacturing a tire that fell short of warranted standards;
- e. Failing to heed the warning and notice that during the normal and expected use of tires similar to the failed tire, serious injuries and deaths had occurred;
- f. Failing to recall the failed tire or prevent its distribution and sale;
- g. Using substandard materials during the manufacture of the failed tire;
- h. Failing to implement adequate quality control during the manufacture of the failed tire and similar tires;
- i. Failing to sufficiently regard and react to in-plant cut section analysis and in-field tire disablements and other data that indicated (or should have indicated) detectable patterns that similar tires were failing due to design and/or manufacturing defects;
- j. Choosing to ignore and/or failing to properly investigate past consumer complaints and/or notices of safety issues and/or defects.
- k. Failing to undertake appropriate system failure analysis and/or root cause analysis when information about adverse events involving similar tires became known;
- l. Failing to incorporate sufficient features into the failed tire's design to prevent the initiation and growth of separation such that the tire's tread separates unexpectedly during normal operating conditions;

- m. Failing to use adequate aging-prevention chemicals and features and/or failing to adequately warn about the hazards, if any, associated with tire age;
 - n. Manufacturing a tire that fails prematurely; and
 - o. Failing to properly inspect for tire defects.
40. The negligent acts and omissions of Defendant Goodyear, either singularly and in combination, were a proximate cause of Plaintiffs' injuries and damages.

Count 3: Negligence (Roadjet and Polestar)

41. Plaintiffs repeat and re-allege all paragraphs in this Complaint as if fully set forth herein.

42. Plaintiffs allege that Ismail was negligent in operating a commercial motor vehicle that had a tire that was defective in its design or manufacture and which failed at the time and place of the occurrence at issue and caused a fatal crash.

43. At all relevant times, Defendants Roadjet and Polestar were the owners of the subject tractor-trailer.

44. At all relevant times, Defendants Roadjet and Polestar Defendants were in a joint venture/enterprise. Each Defendant shared a community of interest and had an equal right to share in the control, management, and operation of their interstate trucking joint venture/enterprise.

45. At all relevant times, Defendants Roadjet and Polestar were the employer of Ismail, who, at the time of the crash, was acting within the course and scope of his employment, agency, or apparent agency with Defendant Roadjet and/or Polestar.

46. Plaintiffs allege that Defendants Roadjet and Polestar are vicariously liable to them based on the doctrine of *respondeat superior*. That is, Defendants Roadjet and Polestar are liable to Plaintiffs by virtue of the negligent conduct of their driver, Ismail. Further, the above negligence

on the part of Defendants Roadjet's and Polestar's employee, agent, or apparent agent, Ismail, was the proximate cause of the collision in question and the resulting injuries and damages to the Plaintiffs.

47. Defendants Roadjet and Polestar had a legal obligation to operate their 18-wheeler with safe tires. Because the steer tire that failed was defective in its manufacture and/or design, there was a breach of the duty to operate the 18-wheeler with safe tires.

48. Defendants Roadjet and Polestar negligent conduct was a cause of the collision in question and Plaintiffs' injuries and damages.

Count 4: Joint Venture/Enterprise
(Roadjet and Polestar)

49. Plaintiffs repeat and re-allege all paragraphs in this Complaint as if fully set forth herein.

50. Defendants Roadjet and Polestar were engaged in a joint venture/enterprise at all times relevant to the subject fatal wreck.

51. Each Defendant had a shared community of interest in the object and purpose of the undertaking of profiting in the interstate commercial trucking industry.

52. Roadjet and Polestar had an equal right to share in the control of the administration, management, and operation of the venture/enterprise for interstate commercial trucking and its profits and losses during the subject wreck regardless of whether such right was actually exercised.

53. Roadjet and Polestar controlled the administration, operation, planning, management, and quality control of the interstate commercial trucking venture/enterprise. The authority exercised by Roadjet and Polestar over the venture/enterprise, included but was not limited to, control of marketing, human resources management, training, staffing, creation and implementation of policies and procedures used by the venture/enterprise, compliance, compliance

with state regulations and standard of care, licensure and certification, legal services, and/or financial, tax, and accounting control through fiscal policies established by the Roadjet and Polestar.

54. These Defendants operated as a joint venture/enterprise for the purpose of increasing profitability and furthering their business interests.

55. At all relevant times mentioned herein, the corporate Defendants owned, operated, administered, and/or controlled, either directly or through the agency of each other and/or other diverse subalterns, agents, subsidiaries, servants, or employees in the operation of their interstate commercial trucking venture/enterprise, including Ismail.

56. Because the Defendants named herein and others were engaged in a joint venture/enterprise before and throughout subject fatal wreck, the acts and omissions of each participant in the joint venture/enterprise are imputable to all other participants. The actions of the Defendants and each of its servants, agents and employees as set forth herein, are imputed to each of the Defendants, jointly and severally.

Count 5: Negligence (NMDOT)

57. Plaintiffs repeat and re-allege all paragraphs in this Complaint as if fully set forth herein.

58. At all times pertinent hereto, Defendant NMDOT, through its employees or agents, was responsible for safely maintaining and operating I-40 in Cibola County, New Mexico.

59. Defendant NMDOT, through its employees or agents, was under a duty to ensure that I-40 was properly maintained and operated so as not to pose an unnecessary risk of harm to drivers or vehicles on the road.

60. Collisions involving cross-over situations, where vehicles travelling in opposite

directions on roadways and highways cross the center lane or median, are common on highways throughout New Mexico and on I-40 in particular.

61. NMDOT either knew or should have known of the significant risk that cross-over collisions pose. NMDOT either knew or should have known that proper traffic controls or maintenance including Jersey barriers, cable median barriers, metal beams, proper raised medians, and guard rails would prevent high-speed travel in opposite directions causing head-on collisions.

62. Defendant NMDOT intentionally, willfully, recklessly, or negligently failed to meet its duties through one or more of the following acts or omissions:

- a. Failing to devote the resources necessary to identify all potential hazards facing motorists on the road due to crossover accidents.
- b. Failing to respond properly to previous crossover incidents by properly maintaining and remediating all potential hazards facing motorists on the road including, without limitation, installation of guard rail or other barriers to prevent crossover accidents.

63. The intentional, willful, reckless, or negligent conduct outlined above was a cause of Plaintiffs' injuries and damages.

Count 6: Damages

64. Plaintiffs repeat and re-allege all paragraphs in this Complaint as if fully set forth herein.

65. Defendants' wrongful acts, neglect, and carelessness are a cause of the deaths of Michael Walsh, Angela Walsh, and Jessica Walsh, and the resulting damages suffered by the Plaintiffs.

66. The Plaintiffs seek monetary damages, in amounts to be proven at trial, from Defendants to compensate for the injuries and damages.

67. For the wrongful death of Michael Walsh, Plaintiff Joleen Youngers as the Personal

Representative of the Wrongful Death Estate of Michael Walsh, Deceased, seeks damages including, but not limited to:

- a. Conscious physical pain and suffering from the time of his injuries until the time of his death;
- b. Emotional pain and suffering experienced from the time of his injuries until the time of his death;
- c. Loss of enjoyment of a full life expectancy and the joys and fullness of that life;
- d. Loss of household services for the statistical lifetime of Michael Walsh, had he not suffered this wrongful death;
- e. Pecuniary loss;
- f. The value of life itself of Michael Walsh, apart from his earning capacity;
- g. The reasonable expenses of necessary medical care and treatment and funeral and burial;
- h. The mitigating or aggravating circumstances attending the wrongful act, neglect, or default; and
- i. All other available relief under New Mexico law, including costs and fees.

68. For the wrongful death of Angela Walsh, Plaintiff Joleen Youngers as the Personal Representative of the Wrongful Death Estate of Angela Walsh, Deceased, seeks damages including, but not limited to:

- a. Conscious physical pain and suffering from the time of her injuries until the time of her death;
- b. Emotional pain and suffering experienced from the time of her injuries until the time of her death;
- c. Loss of enjoyment of a full life expectancy and the joys and fullness of that life;
- d. Loss of household services for the statistical lifetime of Angela Walsh, had she not suffered this wrongful death;
- e. Pecuniary loss;

- f. The value of life itself of Angela Walsh, apart from her earning capacity;
- g. The reasonable expenses of necessary medical care and treatment and funeral and burial;
- h. The mitigating or aggravating circumstances attending the wrongful act, neglect, or default; and
- i. All other available relief under New Mexico law, including costs and fees.

69. For the wrongful death of Jessica Walsh, Plaintiff Joleen Youngers as the Personal Representative of the Wrongful Death Estate of Jessica Walsh, Deceased, seeks damages including, but not limited to:

- a. Conscious physical pain and suffering from the time of her injuries until the time of her death;
- b. Emotional pain and suffering experienced from the time of her injuries until the time of her death;
- c. Loss of enjoyment of a full life expectancy and the joys and fullness of that life;
- d. Loss of income and earning capacity and loss of household services for the statistical lifetime of Jessica Walsh, had she not suffered this wrongful death;
- e. Pecuniary loss;
- f. The value of life itself of Jessica Walsh, apart from her earning capacity;
- g. The reasonable expenses of necessary medical care and treatment and funeral and burial;
- h. The mitigating or aggravating circumstances attending the wrongful act, neglect, or default; and
- i. All other available relief under New Mexico law, including costs and fees.

70. Plaintiff Derick Walsh is the son of decedents Michael and Angela Walsh and the sister of decedent Jessica Walsh. As a result of the acts and omissions as detailed in this Complaint,

Plaintiff Derick Walsh suffered a loss of consortium and emotional distress by the deaths of Michael Walsh, Angela Walsh, and Jessica Walsh. Plaintiff Derick Walsh had close and mutually dependent relational bonds with Michael Walsh, Angela Walsh, and Jessica Walsh, and those relationships and bonds have been damaged. As a result of the acts and omissions as detailed in this Complaint, Plaintiff Derick Walsh suffered loss of consortium and all other available relief under New Mexico law, including fees and costs.

Count 7: Pre-Judgment and Post-Judgment Interest

71. Plaintiffs repeat and re-allege all paragraphs in this Complaint as if fully set forth herein.

72. Plaintiffs additionally show that they are entitled to recovery of pre-judgment and post-judgment interest in accordance with law and equity as part of their damages herein, and the Plaintiffs seek recovery of pre-judgment and post-judgment interest as provided by law and equity.

III. PRAYER FOR RELIEF

73. WHEREFORE, PREMISES CONSIDERD, the Plaintiffs pray that Defendants be cited to appear and answer and that, upon final trial hereof, the Plaintiffs have judgment against Defendants, that they recover damages in accordance with the evidence, that they recover costs of Court herein expended, that they recover interest, both pre- and post-judgment, to which they are entitled under the law, and for such other and further relief, both general and special, legal and equitable, to which they may be justly entitled.

[Signature blocks follow on the next page.]

Respectfully submitted,

DURHAM, PITTARD & SPALDING, L.L.P.

/s/ Justin R. Kaufman

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